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RWANDA

Human Rights Developments

By late 1999, the Rwandan government had largely put down an insurgency which had operated out of northwestern Rwanda and adjacent areas of the Democratic Republic of the Congo (DRC) for the past eighteen months. In doing so, its troops killed tens of thousands of people, many of them civilians, and forced hundreds of thousands of Rwandans to move into government-established "villages." The Rwandan government had invaded the DRC in mid-1998, purportedly to ensure its security, but after having destroyed rebel bases near the border, it sent troops hundreds of miles into Congolese territory. As Rwanda scrambled to control Congolese territory and resources, its troops clashed repeatedly with soldiers of its erst-while ally, Uganda.

With the suppression of the insurgency and a July 1999 cease-fire in the DRC war, the on-going conflict that began in 1990 seemed to have ceased once more. At that time, the Rwandan Patriotic Front (RPF), composed largely of Tutsi refugees who had spent decades in exile, launched a war against the Rwandan government, then dominated by Hutu, who form the great majority of the Rwandan population. The Tutsi had been driven from Rwanda during the 1959 Hutu revolution which ended longstanding Tutsi rule.

In 1994, in a desperate bid to recoup ground lost to a growing internal opposition and to the RPF, the Rwandan government carried out a genocide that killed more than half a million Tutsi. After being defeated by the RPF in 1994, the genocidal government led some two million Rwandans into exile, more than half of them to Zaire (now the DRC). In refugee camps there, remnants of the defeated army rearmed, recruited new forces, and began incursions into Rwanda. In 1996, Rwandan troops helped Zairean Tutsi overthrow the Zairean government in the first DRC war, in the process dispersing the camps, massacring tens of thousands of unarmed civilians, and killing thousands of soldiers and militia. Some 600,000 camp residents returned to Rwanda, where some of them launched an insurgency that posed a serious threat to the current government by mid-1997.

The government then revived Local Defense Forces, officially sanctioned paramilitary groups that had existed from mid-1994 to mid-1995. During 1999, it expanded these forces to more than 7,000 men. After brief training, they were charged with patrolling their neighborhoods to suppress purportedly anti-government activity, some of them armed with firearms, others with machetes. Many of the forces were Tutsi, but in regions where Tutsi were few, Hutu were also called to serve, some of them against their will.

During 1998, as part of its effort to suppress the insurgency, the government moved hundreds of thousands of people in the two northwestern prefectures into supervised camps. At the end of 1998, the government ordered the displaced to relocate once more, this time to officially designated "villages." Since 1995, the government had been resettling Rwandans returned from outside the country and the internally displaced in "villages," refusing to allow them to live in the dispersed homes customary in Rwanda. They insisted that villagisation would promote economic development and improve delivery of services to the population. As applied in the northwest, however, the program appeared to be meant primarily to reduce the likelihood of a new insurgency. By late 1999, 94 percent of the population of Kibungo and 60 percent of the population of Mutara, both prefectures in the east, had been moved into villages, as had 40 percent of the population of the prefecture surrounding the

capital of Kigali. In addition 94 percent of the people of the northwest who had been in camps had been moved into villages and others, still in their own homes, had been ordered to destroy them and move to the new sites, where they were obliged to live in temporary shelters, under plastic sheeting, while building new houses. Persons who resisted these orders were fined or imprisoned. Despite government promises, most sites offered no services (water, schools, clinics) and residents often had to walk much farther to cultivate their fields.

By late 1999, many land claims from the relocation remained unresolved. Farmers in the northwestern prefecture of Ruhengeri were cultivating less than 60 percent of available arable land. About 60 percent of the population of the northwestern prefectures was malnourished (compared with 40 percent elsewhere in the country) and more than half a million still depended on foreign food aid near the end of the year.

In early 1999, the government which had been in power since 1994 organized its first elections. Nearly 90 percent of adult Rwandans voted for officials at the two most local levels of government. The elections, carried out by lining up behind candidates, departed from the usual Rwandan practice of voting by secret ballot. In some places, soldiers and civilian authorities used force or threats to try to compel hesitant persons to vote or to stand for office. In a case documented by a local human rights organization, a man was jailed for two days in the northwest after he had declined to serve in a post to which he had been elected against his will.

Although ready to concede citizens a limited voice in local government, authorities failed to consult them about decisions of national policy that were central to their lives, such as the imposition of villagisation.

In mid-1999, national political leaders decreed that the current government would not step down at the end of its five-year mandate, as specified in the Arusha Accords of 1994, but would continue to rule for at least another four years. If the government as a whole was to stay, some of its members had already been replaced. In December the minister of state for internal affairs fled the country after her brothers were arrested on charges of aiding the insurgents and shortly after, the Minister of Justice also chose exile, apparently after his repeated efforts to curb military interference in judicial decisions had failed. In February, the government was reshuffled, with those dismissed reportedly accused of corruption and incompetence.

National political leaders also removed four members of the National Assembly, charging them with involvement in the genocide, links to the insurgency, or corruption. They subsequently obliged other parliamentarians to resign or simply removed them, until finally about one third of the National Assembly had been replaced, all by individuals designated by party leaders.

In July 1999, the entire Supreme Court was replaced, after the judges were removed or pressured to resign, reportedly charged with responsibility for the stagnation of the judicial system.

Trials of persons accused of genocide moved at a snail's pace during 1999, although this was due less to any supposed inadequacy of the Supreme Court than to problems at the lower levels of the system. Prosecutors, judges, and investigators were poorly paid and subject to pressure and sometimes to threats from all sides. Many left government service, and among those who continued, absenteeism and slow rates of work were major problems. Fewer than 2,000 persons had been tried since the trials began nearly three years ago. A program to persuade accused persons to confess in return for possible reductions in sentence had attracted some 9,000 persons, but their willingness to confess had made little difference in the number of cases resolved.

When the current government took power, the judicial system lacked both the personnel and the means to prosecute the numerous cases of genocide. The international community subsequently contributed some \$40 million to assist in delivering justice, an investment that had a relatively small return in part because the delivery of justice was highly politicized. Persons from the top to the bottom of society were accused of genocide, anti-Tutsi activities, or links to the insurgents whenever personal or political enemies wanted to threaten them. During 1999, the president and the prime minister themselves were thus accused, but remained in power and were not brought to trial.

In early May, the RPF publicly condemned survivors for falsely accusing others of genocide, but failed to note that RPF leaders themselves also sometimes resorted to false charges for their own ends. In some cases, survivors who spoke out against false accusations or testimony were harassed by other survivors who wanted the accused persons condemned. A witness at a trial in Butare declared in court that some persons, including judicial personnel, had attempted to persuade him to give false testimony. Threatened immediately after with arrest, the witness went into hiding.

During an April reburial ceremony for genocide victims, President Pasteur Bizimungu called on all Hutu to apologize for the genocide, thus suggesting all bore some responsibility for the crime. After remarks about conflicts between the Catholic Church and the government, he announced that Bishop Augustin Misago had been accused of genocide and stated that the Catholic Church should send him away, even if he were innocent. In this highly politicized context, Misago was arrested the following week and reports circulated that the archbishop of Kigali would be similarly charged.

The Rwandan genocide law charged the Kigali prosecutor with preparing a list of all persons suspected of crimes that fell in the first and gravest of four categories of possible genocidal offenses. Those so categorized were generally supposed guilty and were more likely to be condemned to death after trial. The first list, issued in 1996, had many errors, including citing individuals who were dead before the genocide began. In mid-1999, the prosecutor was to issue a revised list, removing 800 names and adding some 900 others. At the last moment, publication was halted because the revised list too contained errors.

According to government statistics at the start of 1999, Rwandan jails held some 150,000 persons: 135,000 were charged with genocide and 15,000 with other crimes. Construction of new facilities and expansion of old ones reduced overcrowding somewhat in a few of the central prisons, but prisoners in others, including in communal jails, live in inhumane conditions of overcrowding and lack of sanitary facilities. At Butare prison more than fifty persons died in a typhoid epidemic in the space of a few weeks. Two nongovernmental organizations, Prison Reform International and Dignity in Detention, introduced work programs which improved conditions somewhat in a few facilities.

Under steady pressure from the international community, Rwandan authorities announced in October 1998 that ten thousand detainees whose files contained no substantial proof of guilt would be released. By October 1999, some 3,500 detainees were released, many of them elderly, infirm, or young. In some communities, judicial personnel sent lists of persons proposed for release to local officials who then invited the community to present evidence against them. If such evidence was obtained, the persons were not released. Some 4,500 young people were detained for genocide committed when they were between the ages of fourteen and eighteen years old. They and 200 others who were younger than fourteen when the supposed crimes were committed remain in a training school.

Throughout much of 1999, Rwandan authorities discussed the establishment of a new form of popular justice based on gacaca, a customary mechanism for conflict resolution. Judges would be elected at the level of cell, sector, commune, and prefecture. Those accused of crimes from the least serious category, category four, would be tried at the cell level, those of category three at the sector level, and those of category two at the commune level. Appeals would be heard at the level of the prefecture. Those accused of category one crimes would be tried in the usual formal court proceedings. The proposed system provided no safeguards for the accused, such as the right to legal counsel.

During 1999, the number of cases of persons who "disappeared" at the hands of authorities diminished. But the police did engage in a number of sweeps, such as one in Kigali in June, where hundreds of persons were detained on the pretext of lacking necessary identity papers or residence permits.

One journalist was detained for several months after having criticized a military officer in print. Another, incarcerated since 1997, was unexpectedly released in mid-1999. A third, critical of the authorities, fled Rwanda early in the year, saying that his life had been threatened.

The International Criminal Tribunal for Rwanda, much criticized for slowness in prosecuting persons accused of genocide, this year adopted procedures to expedite trials and established a new panel of judges to assist the two already seated. During 1999, the court found another three suspects guilty of

genocide and sentenced them to terms varying from fifteen years to life in prison. The tribunal also arrested five more former ministers in the genocidal government, thus increasing the number of those in international custody to more half the cabinet at that time. Frequently criticized for the large number of vacancies among its professional staff, the tribunal reformed recruitment procedures and reduced the vacancy rate from 36 to 9 percent. Judge Louise Arbour finished her term as prosecutor and was replaced by Judge Carla DelPonte. In the first criminal prosecution in a national court outside Rwanda, a Swiss military court found a Rwandan burgomaster guilty of violating the Geneva conventions and sentenced him to life in prison.

Defending Human Rights

Rwandan human rights organizations, weakened by the death or flight into exile of some of their leaders in 1998, grew stronger in 1999. The trial observers team of the Rwandan League for Human Rights (LIPRODHOR) provided a continuing record of genocide trials and evaluated how well the proceedings were conducted. Also under LIPRODHOR sponsorship, a team visited communal jails, reporting both to local officials and to the public on abuses in these facilities, and another began monitoring how persons released from custody were treated when they returned to their communities.

The government named seven members to the first National Human Rights Commission. Among them only the president and one other had any previous human rights experience and government officials outnumbered representatives of the civil society. They undertook training at a human rights law program in Europe before beginning their duties.

The Role of the International Community

Still burdened by guilt over the genocide, the international community ignored reports of abuses and supported the Rwandan government generously, hoping thus to achieve stability in the region. During 1999, about 45 percent of the budget was paid for by foreign aid. Among the larger donors was the World Bank, which gave \$75 million for economic reforms (plus \$5 million for another specific program), and the United Kingdom which pledged \$70 million of unrestricted funding over a period of ten years. The U.S. provided \$10 million to support justice, \$3 million of it for a public relations campaign to win popular support for gacaca. The Netherlands contributed \$6.7 million for education and civil service reform. In July, Austria, Belgium, Denmark, and Norway all indicated they would increase their assistance to Rwanda.

Recognizing that the DRC war was disrupting the entire region, the European Union (E.U.) threatened to cut aid to the parties to the conflict, but in the end only suspended assistance for a short time. Following warnings from a U.N. commission on arms trade in the region that the flow of weapons risked stimulating war in the Great Lakes region, the E.U. stressed the obligation of member states to prohibit arms exports that would have that result. In a common position announced in July, the E.U. laid much of the responsibility for ending the DRC war on Rwanda and at least reminded Rwanda of its obligations to abide by international humanitarian law, although it did not explicitly condemn any of the massacres attributed to Rwandan troops. Concerning developments within Rwanda, the E.U. indicated its approval of Rwandan local elections by offering to pay for the training of those elected and urged further elections at higher levels within two years. In connection with the genocide trials, it asked Rwanda to release detainees without files, as had been promised, and to use restraint in imposing and executing the death penalty. Concerned about the proposed introduction of gacaca, the E.U. cautioned that the program might violate international human rights standards and urged recognition of the accused's right to a defense. Concerned also about villageization, the E.U. affirmed the need for planning, for popular consultations, and for equitable distribution of land in order to avoid human rights violations.

The U.S. was widely seen as a key supporter of the Rwandan government. In July Assistant Secretary of State for African Affairs Susan Rice reacted against this characterization of U.S. policy, insisting that the U.S. showed no favor for Rwanda in the DRC war. The U.S. did attempt to bring all parties to the war to a settlement, but its continued military training programs for Rwandan soldiers, like the absence of firm, explicit condemnation of abuses in the DRC and in Rwanda indicated continued important support for the Rwandan government.

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